

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

SILVIA MICHELLE ALEMAN,

Petitioner

VS.

ANDREW REYES,

Respondent

) Case Number: FDI-25-801091

) Hearing Date: April 30, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER TEMPORARY EMERGENCY ORDER, SEE MC-030 ATTACHMENT 7
FOR FULL LIST OF OST ORDERS REQUESTED; CHANGE OF SPOUSAL OR PARTNER
SUPPORT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner Silvia Aleman (Wife) and Respondent Andrew Reyes (Husband). The parties married on 3/14/2009 and they agree their date of separation is 3/8/2025, for a marriage of 15 years and 11 months. The parties have no minor children. Both parties are self-represented.
- 2) On 3/26/2025, the Court denied Husband's request for a Domestic Violence Restraining Order against Wife.
- 3) On 9/2/2025, per the Findings and Order After Hearing filed 9/16/2025, the Court ordered Husband to pay Wife \$1,125 per week in temporary spousal support pending a review hearing set for 11/4/2025.
- 4) On 11/4/2025, per the Findings and Order After Hearing filed 11/17/2025, the Court ordered Husband to pay Wife \$3,693 per month in temporary spousal support effective 6/4/2025, in

1 addition to bonus spousal support. That support order was based on Husband's average monthly
2 salary of \$11,638 with a \$600 monthly car allowance and Wife's earning \$0.

3 5) On 1/22/2026, per the Findings and Order After Hearing filed 2/9/2026, the Court granted
4 Husband's request to suspend spousal support for Wife based upon Husband's termination from
5 his job. The Court set temporary spousal support to \$0 effective 1/14/2026. The Court also
6 ordered both parties to use their best efforts to seek and secure a position of paid employment and
7 to notify the other party if they secured a position of paid employment. The Court ordered that
8 any future spousal support award may be made retroactive to the date upon which the payor
9 secures a position of paid employment. The Court further ordered the parties to complete and
10 serve their Preliminary Declarations of Disclosure and to file a Declaration Regarding Service of
11 Preliminary Declaration of Disclosure (FL-141) no later than 2/20/2026.

12 6) On 3/5/2026, a Status-Only Judgment was entered, terminating the parties' marital status.

13 7) Now on for hearing is Husband's ex parte Request for Order filed 3/6/2026 asking the Court to:

- 14 a. Order Wife to complete Preliminary Declarations of Disclosure and file an FL-141 form;
- 15 b. Order Wife to "produce support-relevant documents sufficient to verify income,
16 residence, and claimed expenses, including: (a) current FL-150 with supporting
17 documents; (b) the last two months of pay stubs or written proof under penalty of perjury
18 of no income; (c) the most recent two months of bank statements for accounts used for
19 living expenses with transactions (mandatory for financial disclosures); (d)
20 documentation showing Petitioner's actual current residence address and what Petitioner
21 actually pays for housing (lease, rent receipts, or a signed statement from the person
22 providing housing); and (e) payment-app records (including Venmo) to the extent they
23 reflect income, recurring transfers, or payment of living expenses. Public assistance and
24 housing support disclosure. Order Petitioner to disclose and produce records of any
25 public assistance or needs-based benefits received within the last 12 months, including
26 SNAP and any housing or rental assistance, and documentation of Petitioner's housing
27 arrangements and actual costs associated with those arrangements for the same period."
- 28 c. Order Wife to produce any disability or retraining documentation Wife relies upon to
29 justify unemployment or underemployment;

- d. Order Wife to pay Husband temporary spousal support of \$500 per month;
 - e. Require job search documentation and full disclosure of any gainful employment;
 - f. Impute income to Wife based on earning capacity if Wife fails to prove actual income and good faith job search; and
 - g. Sanction Wife for “noncompliance of PDD’s.”
- 8) On 3/5/2026, Wife filed a Declaration asking the Court to deny Husband’s request for spousal support and order Husband to produce his bank statements for the last 15 months so that the Court may determine the current location and disposition of funds. Wife states that while Husband lives in his own apartment and drives a Mercedes, Wife does not have a vehicle of her own and has relied on the assistance of friends and family for temporary housing. Wife states she “has not been employed outside the home for 12 years.” Wife states she is “currently preparing to obtain a certification through the Certification Commission of Healthcare Interpreters in order to begin working as a medical interpreter.”
- 9) Per the Temporary Emergency Orders filed 3/6/2026, Husband’s requests were denied pending the hearing set for 4/30/2026.
- 10) Also on for hearing is Wife’s Request for Order filed 3/13/2026 asking the Court to:
- a. Order Husband to pay Wife temporary spousal support of \$600 per month based on Husband’s unemployment compensation;
 - b. Order Husband to document and report his job search efforts and request;
 - c. Order Husband to provide written notice to Wife and the Court within 5 days of obtaining employment, along with updated income documentation.
- 11) On 3/17/2026 and 3/19/2026, Wife filed an Income and Expense Declaration. Wife states that she is 48 years old. She was last employed as a front desk agent for the Four Seasons until 1/15/2017. Wife reports no sources of income. Wife states she has \$3,379 in cash savings. Wife states her estimated monthly expenses total \$5,600, including rent of \$2,900 per month. Wife does not state that she lives with anyone and does not state that anyone is helping her with her expenses. Wife lists no debts. Wife states, “I am currently unemployed, unhoused, and experiencing financial hardship; I am relying on limited savings to meet basic expenses.”

1 12) On 3/20/2026, Husband filed another declaration. Husband states he “timely filed and served” his
2 Income and Expense Declaration on 2/20/2026. However, the Court does not see a recent Income
3 and Expense Declaration on file for Husband (the most recent Income and Expense Declaration
4 filed by Husband was filed on 1/13/2026). Husband reiterates the arguments and requests made
5 in his earlier declaration.

6 13) On 3/25/2026, Wife filed a Declaration asking the Court to deny Husband’s request for spousal
7 support. Wife states the estimated expenses she listed in her Income and Expense Declaration are
8 a “good-faith representation of Petitioner’s anticipated and necessary living costs.” Wife states
9 she stopped working previously due to “ongoing pain from a repetitive stress injury for over 12
10 years.” Wife states she is “currently unhoused, without reliable transportation, and has no income.
11 The limited funds previously received were insufficient to secure stable housing, transportation,
12 or meet ongoing living expenses. Petitioner continues to experience financial hardship and lacks
13 the resources necessary to establish stability. Petitioner does not have the financial ability to pay
14 support under any reasonable evaluation of her current circumstances.” Wife also states that she
15 competed and provided Income and Expense Declarations and Schedules of Assets and Debts “on
16 multiple occasions, including on May 22, 2025, October 28, 2025, and March 17, 2026.”

17 14) On 4/22/2026, Husband filed another declaration. Husband states that between October 2025
18 “through the end of July 2026” (the Court notes this must be a typographical error), Wife has
19 “secured and continues to secure a sustained series of prearranged house and pet-sitting
20 placements in well-appointed homes throughout the Portland and Seattle metropolitan areas...
21 providing Petitioner with consistent access to furnished housing, utilities, and related living
22 expenses over an extended period... Non-cash benefits received in exchange for services,
23 including housing and utilities, constitute economic value and must be considered in evaluating
24 financial circumstances... The Court should instead evaluate her financial position based on her
25 demonstrated reduced expenses and the substantial in-kind benefits she receives when
26 determining both need and ability to contribute to temporary spousal support.” Husband attaches
27 to his declaration screenshots from TrustedHousesitters.com, showing a purported profile for
28 Wife along with reviews for house and pet-sitting jobs allegedly performed by Wife within the
29 past several months.

1 15) On 4/27/2026, Wife filed another declaration. Wife states that short-term pet-sitting arrangements
2 are not continuous or guaranteed and do not constitute “financial support or income.” Wife states
3 she provides pet care in exchange for temporary lodging and she receives no wages or
4 compensation of any kind. Wife states she incurs costs for transportation and there are frequent
5 gaps between assignments during which she has to pay for hotel rooms or rely on friends for
6 temporary shelter. Wife states, “I am currently reentering the workforce as a healthcare
7 interpreter and am working with a translation and interpreting agency to secure assignments. I am
8 also preparing for the national certification exam required for healthcare interpreters, which costs
9 approximately \$300. Given my extremely limited financial resources, I must be adequately
10 prepared before taking the exam to avoid the additional cost of retaking it.”

11 16) On 4/28/2026, Husband filed another declaration stating that Wife could perform medical
12 interpreter work remotely and that medical interpreting agencies “typically hire without national
13 certification.” Husband notes that Wife does not state when she intends to comply with the
14 Court’s order requiring her to file an FL-141. Husband states he is relying on credit cards and
15 loans to meet his basic monthly expenses and that he is “at real risk of losing stable housing and
16 reliable transportation.”

17 **B. Findings and Order**

18 1) Wife states that she has already served her Income and Expense Declaration and Schedule of
19 Assets and Debts. However, there is no Declaration Regarding Service of Declaration of
20 Disclosure (FL-141) on file for Wife, despite the Court’s order requiring the parties to file an FL-
21 141 no later than 2/20/2026. No later than 5/8/2026 at 5:00 PM, Wife shall file an FL-141 and, if
22 Wife has not already done so, she must serve on Husband all documents that are required to be
23 included with her Preliminary Declaration of Disclosure. The Court will review Wife’s
24 compliance with this order and consider awarding sanctions to Husband at the hearing date
25 currently set for **Thursday, 5/28/2026 at 9:00 AM in Dept. 404** in Husband’s Request for Order
26 filed 3/20/2026. No later than 5/15/2026, Husband shall file and serve a declaration listing any
27 deficiencies in Wife’s Preliminary Declaration of Disclosure. No later than 5/22/2026, Wife may
28 file and serve a declaration responding to Husband’s declaration.
29

- 2) Husband's request that the Court compel Wife to produce documents to verify income, residence, disability, retraining, and claimed expenses is denied. Husband may request these documents from Wife through discovery.
- 3) Husband's request that the Court impute income to Wife based on her earning capacity and his request that the Court order Wife to pay Husband \$500 per month in temporary spousal support is denied. It appears undisputed that Husband has out-earned Wife by a significant amount both during marriage and after the parties' date of separation, even when Wife was employed. It also appears undisputed that Husband's current earning capacity far exceeds Wife's current earning capacity. The Court finds that it would be inequitable to impute income to Wife without imputing income to Husband and that, if the Court were to do so, Husband's ability to pay support would exceed Wife's ability to pay support. The Court also notes that while Wife appears to have reduced housing costs due to her ability to pet-sit or stay with friends (which may reduce her need to receive support), Husband has not identified an actual source of funds, whether it be actual income or assets from which the Court could order Wife to pay support to Husband.
- 4) The Court also denies Wife's request that Husband pay her \$600 per month in temporary spousal support. Although Husband may be receiving unemployment compensation, the amount he is receiving is not sufficient to cover his basic living expenses and Husband reports having minimal assets. The Court finds that Husband does not currently have the ability to pay spousal support to Wife.
- 5) Both parties' requests that the parties be required to document their work search efforts is granted. Each party is required to abide by the attached Seek Work Order, which requires the parties to provide monthly logs of their work search efforts.
- 6) The parties must immediately notify the other party if either of them is or begins to earn income through employment or self-employment.
- 7) Any future spousal support award may be made retroactive to the date upon which either party begins to receive income through employment or self-employment.
- 8) The Court will prepare the Findings and Order After Hearing.